

HOUSE No. 1309

The Commonwealth of Massachusetts

PRESENTED BY:

Lindsay N. Sabadosa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act assuring prompt access to health care.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/9/2025</i>
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>4/29/2025</i>

HOUSE No. 1309

By Representative Sabadosa of Northampton, a petition (accompanied by bill, House, No. 1309) of Lindsay N. Sabadosa relative to reimbursements of costs for medically appropriate evaluations and management services in outpatient settings. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act assuring prompt access to health care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by adding at the end
2 the following new section:

3 Section 28: Reimbursement of costs for medically appropriate evaluation and
4 management services in outpatient settings, including but not limited to office- and hospital-
5 based clinics, in accordance with guidelines developed by the division of insurance, shall be part
6 of a basic benefits package offered by the insurer or a third party and shall not require a
7 deductible; provided, however, that deductibles shall be required if the applicable plan is
8 governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result
9 of the prohibition on deductibles for these services.

10 SECTION 2. Chapter 32B of the General Laws is hereby amended by adding at the end
11 the following new section:

Section 30: Reimbursement of costs for medically appropriate evaluation and management services in outpatient settings, including but not limited to office- and hospital-based clinics, in accordance with guidelines developed by the division of insurance, shall be part of a basic benefits package offered by the insurer or a third party and shall not require a deductible; provided, however, that deductibles shall be required if the applicable plan is governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on deductibles for these services.

SECTION 3. Chapter 175 of the General Laws is hereby amended by inserting the following section:-

Section 47LL: Reimbursement of costs for medically appropriate evaluation and management services in outpatient settings, including but not limited to office- and hospital-based clinics, in accordance with guidelines developed by the division of insurance, shall be part of a basic benefits package offered by the insurer or a third party and shall not require a deductible; provided, however, that deductibles shall be required if the applicable plan is governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on deductibles for these services.

SECTION 4. Chapter 176A of the General Laws is hereby amended by inserting the following section:-

Section 8NN: Reimbursement of costs for medically appropriate evaluation and management services in outpatient settings, including but not limited to office- and hospital-based clinics, in accordance with guidelines developed by the division of insurance, shall be part of a basic benefits package offered by the insurer or a third party and shall not require a

deductible; provided, however, that deductibles shall be required if the applicable plan is governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on deductibles for these services.

SECTION 5. Chapter 176B of the General Laws is hereby amended by inserting the following section:-

Section 4NN: Reimbursement of costs for medically appropriate evaluation and management services in outpatient settings, including but not limited to office- and hospital-based clinics, in accordance with guidelines developed by the division of insurance, shall be part of a basic benefits package offered by the insurer or a third party and shall not require a deductible; provided, however, that a deductible shall be required if the applicable plan is governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on deductibles for these services.

SECTION 6. Chapter 176G of the General Laws is hereby amended by inserting the following new section 33:-

Section 33: Reimbursement of costs for medically appropriate evaluation and management services in outpatient settings, including but not limited to office- and hospital-based clinics, in accordance with guidelines developed by the division of insurance, shall be part of a basic benefits package offered by the insurer or a third party and shall not require a deductible; provided, however, that a deductible shall be required if the applicable plan is governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on deductibles for these services.